SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30

1. REQUISITION NO.	PAGE 1 OF
570-27-1-751-0031 36C261-27-AP-1412	53

2. CONTRACT NO.	3. AWARD/EFFECTIVE DATE	4. ORDER NO.	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			36C26127Q0140	11-10-2026

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NO. (No Collect Calls)	8. OFFER DUE DATE/LOCAL TIME
	Jill Williams	702-001-5380	11-20-2026 16:00 PST

9. ISSUED BY CODE 00261

Department of Veterans Affairs
Network Contracting Office 21

10. THIS ACQUISITION IS

- [ ] UNRESTRICTED OR [X] SET ASIDE: 100 % FOR:
- [X] SMALL BUSINESS
- [ ] WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM
- [ ] HUBZONE SMALL BUSINESS
- [ ] EDWOSB
- [ ] SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS
- [ ] 8(A)

NAICS: 541350

SIZE STANDARD: Y $11.5 Million

11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)	13b. RATING	14. METHOD OF SOLICITATION
[ ] SEE SCHEDULE		[ ]	N/A	[X] RFQ [ ] IFB [ ] RFP

15. DELIVER TO CODE

See Performance Work Statement

16. ADMINISTERED BY CODE 00261

Department of Veterans Affairs
Network Contracting Office 21

17a. CONTRACTOR/OFFEROR CODE FACILITY CODE

TELEPHONE NO. UEI: EFT:

[ ] 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18a. PAYMENT WILL BE MADE BY CODE

Department of Veterans Affairs
Financial Services Center
P.O. Box 149971

Austin TX 78714-9971

PHONE: FAX:

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED
[ ] SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES (See CONTINUATION Page)	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	The VA Central California Healthcare System (VACCHCS) Medical Center requires triennial inspection, testing and maintenance of electrical systems in compliance with VA Directive 1028 paragraph 8.j (6) dated February 24, 2021. WD 2015-5609 REVISION 29, DATED 05/13/2025 APPLIES TO THIS SOLICITATION. Quote packages must be emailed to jill.williams@va.gov by 16:00 (4pm) PST on 10/20/2026. Questions must be submitted NLT 12:00pm (noon) on 10/15/2026				

(Use Reverse and/or Attach Additional Sheets as Necessary)

25. ACCOUNTING AND APPROPRIATION DATA See CONTINUATION Page

26. TOTAL AWARD AMOUNT (For Govt. Use Only)

[ ] 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA [X] ARE [ ] ARE NOT ATTACHED.

[ ] 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

[X] 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

[ ] 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR		31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)	
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT)	31c. DATE SIGNED

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SECTION B - CONTINUATION OF SF 1449 BLOCKS

B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR:

b. GOVERNMENT: Contracting Officer

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

[] 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or
[] 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly []

b. Semi-Annually []

c. Other [X] Monthly

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests. Invoicing shall be in accordance with the requirements of The Department of Veterans Affairs Financial Services Center (VAFSC). The latest information shall be used for invoicing and payments and may change during the period of performance of this acquisition. Current invoicing information is located at http://www.fsc.va.gov/einvoice.asp.

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

B.2 PRICE/COST SCHEDULE

ITEM INFORMATION

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Triennial Electrical Inspection, testing and maintenance of electrical systems in complinace with the Performance Work Statement Contract Period: Base POP Begin: 12-04-2026 POP End: 12-03-2027	1.00	JB	_____	_____
0002	Demand Maintenance and Repair: Repair/service work to remedy deficiencies found during testing and inspection. (labor only) Contract Period: Base POP Begin: 12-04-2026 POP End: 12-03-2027	500.00	HR	_____	_____
				GRAND TOTAL	_____

Performance Work Statement (PWS)

Tri-Annual Inspection, Testing, and Maintenance of Electrical Systems

VA Central California Health Care System

1. BACKGROUND: The VA Central California Healthcare System (VACCHCS) Medical Center requires tri-annual inspection, testing and maintenance of electrical systems in compliance with VA Directive 1028 paragraph 8.j (6) dated February 24, 2021.

2. SCOPE OF WORK:

2.1 The Contractor shall provide all labor, materials, tools, equipment, Personal Protective Equipment (PPE), specialty services, administrative support, and any necessary professional engineering services required for the inspection, testing, maintenance (including cleaning) and repair of the equipment, including labor, equipment and supplies for all equipment and systems specified or recommended by the equipment manufacturer. Tools, equipment, and PPE shall comply with the requirements of OSHA Standard 29 CFR 1910, Subpart I, and NFPA 70E. A complete, comprehensive list of all equipment systems that the contractor is required to service under this contract is identified in **Attachment #1.**

2.2 The Contractor shall provide maintenance service, in compliance with the following codes, standards and references:

2.2.1 VA Directive 1028 paragraph 8.j (6) dated (February 24, 2019).
2.2.2 NFPA 70B, 70E, 99, 100, and 110,
2.2.3 National Electrical Code,
2.2.4 Equipment manufacturer's recommendations,
2.2.5 National Electrical Testing Association (NETA)- best practices followed to the extent possible,
2.2.6 OSHA Standard 29 CFR 1910, Subparts I & S
2.2.7 All other applicable laws, regulations, rules, ordinances, and codes.

2.3 The specific tasks and services required for this contract are listed in **Attachment #2**. In general, testing will include the following devices: Switchgear and Switchboard Assemblies, (a)

Transformers, Dry Type, Air-Cooled, Low-voltage, Small, (b) Transformers, Dry Type, Air-Cooled, Low-voltage, Large, (c) Transformers, Liquid-Filled, (d) Metal–Enclosed Busways, (e) Switches,

Air, Low-Voltage, (f) Switches, Air, Medium-Voltage, Metal-Enclosed, (g) Circuit Breakers, Air, Insulated-Case/ Molded-Case, (h) Circuit Breakers, Air, Low-Voltage Power, (i) Circuit Breakers,

Vacuum, Medium-Voltage, (j) Protective Relays, Mechanical, and Solid State. (k) Protective Relays, Microprocessor Based, (l) Grounding Systems, (m) Ground-fault Protection Systems, (n) Motor

Control, Motor Starters, Low-Voltage, (o) Emergency Systems, Engine Generators, (p) Emergency Systems, Automatic Transfer Switches, (q) Generator Control and Synchronization Systems.

2.4 If repairs require work outside the scope of routine maintenance, the contractor shall notify the COR for appropriate decision and action. Demand Maintenance and Repair Procedures shall be followed for non-reoccurring maintenance repair work.

2.5 Alternate Power Sources: Depending on estimated outage duration, the Contractor may be required to provide alternate power source(s) (generators, temporary power feeds, temporary automatic transfer switches, etc.) in the event executing work should shut down critical facility systems in the following areas:

2.5.1 Chilled Water Plant (Including but not limited life safety related systems orequipment).

2.5.2 Steam Plant (Including but not limited to life safety related systems orequipment).

2.5.3 Air Handling Units in Building 1, Floors SB 3 and 6

2.5.4 Air Handling Unit, OPC, Basement, Emergency Department

2.5.5 Information Resources Management (IRM) server room, uninterruptable powersupply (UPS) and related heating, ventilation and air conditioning equipment).

2.5.6 Building 1, Sub Basement Motor Control Center.

2.5.7 Building 24, Research Laboratory.

2.5.8 Community Living Center.

2.5.9 Building 1, 5th Floor, West Wing (ICU / SDU) shall have two sources of power at all times.

2.5.10 Police Dispatch

2.6 The Contractor shall be aware that due to mission requirements the work will be predominantly performed during non-business hours 6:00 PM to 6:00 AM and on weekends. For services that require complete or localized power outages, the Contractor shall perform these services outside of normal working hours (6:00 PM to 6:00 AM and on weekends), coordinated in advance with the COR. All services that interrupt or interfere with Medical or patient services shall be coordinated in advance with the COR; this may require Contractor service being performed outside of normal working hours. In some cases where medical emergencies or scheduled services such as surgery are

performed, scheduling may require advance planning up to a week in advance in coordination with the COR.

2.7 The contractor shall perform no service on energized equipment without written approval from the Safety Officer, Engineering Chief, and Hospital Director. VACCHCS has a formal procedure for approval of service on energized equipment. The Contractor will coordinate with the COR who will obtain these approvals for the Contractor. Approvals can take up to a week to obtain and are often disapproved.

2.8 The Contractor will adhere to NFPA 70E for Lock Out/ Tag Out and local VACCHCS procedures for performing service on de-energized equipment.

2.9 All equipment shall be serviced in accordance with the manufacturer's recommendations, the best practices of the industry, and applicable codes, standards, and regulations. If a conflict arises between these standards, the most stringent will prevail.

2.10 The contractor shall be responsible for the installation of signs and or barricades as related to equipment and / or systems as deemed necessary by the COR.

2.11 The Contractor shall maintain workspaces in a clean and orderly manner. When work is performed in these areas, the Contractor's personnel shall clean up all debris and leave the area in a presentable condition. Floors shall be swept and mopped when required and all dust shall be removed from vertical and horizontal surfaces at each visit. Remnant oil spots or stains are not tolerated. The Contractor must obtain the approval of the COR before storing anything in VA spaces. Operating supplies such as lubricants, rags, cleaners, etc., shall be properly secured in containers approved by the COR. Storage shall not negatively impact on the means of egress, fire protection systems, and emergency lighting. Clearances from electrical equipment shall be maintained as required by NFPA 70, the National Electrical Code.

2.12 All inspection and testing intervals shall strictly adhere to the intervals required by the governing codes and standards and manufacturer’s recommendations to the extent possible.

3. REPORTS:

3.1 **Service Report submissions**: The contractor shall provide sample testing and inspection reports in their technical package for COR review and approval. Contractor shall deliver formal/ final reports of service no later than 14 calendar days from completion of each service. Contractor shall provide the reports digitally in PDF by email to the COR. All reports shall adhere to and shall be equivalent to NFPA templates or standards and shall be completed in full and signed. At the conclusion of the tri-annual testing/inspection the contractor shall supply a comprehensive report in two (2) hard three ring binders with cover page, table of contents and tabulated with dividers and one PDF copy on CD Rom of all reports. The reports shall include sections for all services performed including Demand Maintenance and Repair reports. Demand Maintenance and Repair reports must clearly link to a testing/inspection deficiency to demonstrate proper resolution of each deficiency

identified during testing/inspection. Reports shall be submitted within 7 calendar days of the service in two (2) hard three ring binders with cover page, table of contents and tabulated with dividers and one PDF copy on CD Rom. The written report shall show the following minimum information:

3.1.1 Company's name, addresses, telephone, & FAX numbers.
3.1.2 Name and signature of contractors who performed the maintenance and testing.
3.1.3 VA Work Contract Number, name and number of VA Contracting Officer.
3.1.4 Date and Time of work.
3.1.5 Copies of contractors' valid licenses, professional and training certificates.
3.1.6 Descriptions and model number of specialized tools and equipment used, suchas torque wrench or infra-red scanning camera.
3.1.7 Location, Type, Name, and nameplate information of electrical equipment to bemaintained and tested. Descriptions of work items.
3.1.8 Test data.
3.1.9 Reference materials.
3.1.10 Remarks on conditions of electrical equipment. List all deficiencies, if any.
3.1.11 Recommended corrective actions, if any.

3.2 **Deficiency Report.** When any deficiencies are identified, the contractor shall inform the COR immediately via verbal and written notification email. Contractor shall submit the deficiency report to the COR within two (2) business days. The deficiency report shall include at a minimum the following information:

3.2.1 Location
3.2.2 Equipment/system name
3.2.3 Date of failure identification
3.2.4 Description of failure (pictures, drawings, etc.)
3.2.5 Justification (if repair is not accomplished)
3.2.6 Description of repair work (pictures, drawings, etc.)
3.2.7 Material list (description of article, quantity, catalogue-cut, pictures, etc.) for repair
3.2.8 Proposed repair schedule
3.2.9 Cost proposal
3.2.10 Submission date of the report
3.2.11 Signature of technician

3.3 **Repair report**. Upon completion of any repair work, whether via Demand Maintenance and Repair procedures or following routine testing/inspection service, the contractor shall supply a repair report certifying the repair work that was completed. The report shall be provided by email within (2) business days of completion.

4. Demand Maintenance and Repair Procedures:

4.1 For maintenance and repairs requiring work outside the scope of routine maintenance, repairs are performed using Demand Maintenance and Repair

Procedures (CLIN 0002). Repair, maintenance and investigation work may be requested through call back or as a result of routine inspection/testing services.

4.2 **Labor**: Contractor shall submit with their bid proposal a schedule of labor rates that will be charged for maintenance and repair work performed during normal business hours and during non-business hours, holidays and weekends. The submitted schedule of labor rates shall remain unchanged throughout the term of the contract. Prevailing wages apply.

4.3 **Materials**: The contractor shall provide all materials associated with repair work at the Contractor's cost. The contractor may be requested by the COR to provide evidence documenting the contractors' procurement costs associated with materials.

4.4 The contractor shall not perform any repairs not included in the Scope of Work (Attachment 2) or beyond the allotment made for repairs except by Demand Maintenance and Repair procedures. Contractor will not be compensated for any addition repairs without proper authority. Contractor shall obtain a written approval or change order with authorization and notification of available funds. Only the Contracting Officer has the authority to approve change orders. The contractor shall not assume that an increase to the allotted repair funds will be approved or available. The contract shall not invoice against the repair funds without approval of the COR or CO. All repairs shall be authorized in writing.

5. Contractor Qualifications:

5.1 Contractors shall be experienced Electrical Contractors, having properly trained and licensed permanent staff required to perform the proposed work. Electrical Contracting (i.e. the construction, repair, testing and maintenance of industrial and commercial electrical distribution systems) shall be the primary interest/specialty of the Contractor's business.

5.2 Contractors shall be certified by the Inter-National Electrical Testing Association (NETA) or equivalent certifying organization as Certified Technicians.

5.3 Contractors shall have technical training and demonstrable track records of working experience in maintenance, inspection, and testing of Electrical Power Distribution

Systems and related components in healthcare, industrial, educational, and commercial facilities for a minimum of five (5) continuous years. Electrical components on which the Contractors have experience shall include, but not be limited to, panels, switchboards & switchgear (low and medium voltage); low voltage controls; emergency and standby generators; automatic transfer switches, wiring, transformers, meters, and other electrical appurtenances.

5.4 Contractors shall have safety trainings – either on-the-job or class-room type - in electrical safety outlined in the OSHA Standard 29 Code of Federal Regulations (CFR) 1910 Subpart S – Electrical, and the NFPA 70E – Standard for Electrical Safety in the Workplace. Training certification shall be provided indicating each technician is a Qualified Person as defined by NFPA 70E. Training certifications shall be submitted to the VA Contracting Officer prior to work. If no training certifications are available, the Contractor shall certify that he/she has met this requirement in writing and submit it to the VA Contracting Officer prior to work.

5.5 The Contractor shall maintain records identifying the certifications and ongoing training of each employee performing services under this contract. The contractor shall make this record available for review by the Contracting Officers Representative (COR) upon request.

5.6 Contractors shall have and provide all necessary tools, equipment, and Personal Protective Equipment (PPE) to perform the work safely, effectively, and timely. Tools, equipment, and PPE shall comply with the requirements of OSHA Standard 29 CFR 1910, Subpart I, and NFPA 70E.

5.7 Prior to initiating work, Contractor shall provide documentation that all instruments, test equipment, tools and PPE have current calibration. Dated calibration labels shall be visible on all instruments, test equipment, tools and PPE as appropriate.

5.8 Contractor's personnel shall be certified to perform testing on electrical distribution equipment in accordance with ANSI/NETA ETT-2018, Standard for Certification of Electrical Testing Technicians.

5.9 Contractors' personnel shall have received the OSHA 10-hour Construction Safety course and be familiar with NFPA 70, National Electric Code, NFPA 70B.

6. PLACE OF PERFORMANCE: Fresno VA Medical Center - 2615 E. Clinton Ave. Fresno, CA 93703

7. HOLIDAYS: Legal holidays recognized by the Federal Government in accordance with 5 U.S.C. 6103, Executive Order 11582 and Public Law 94-97 or any other by the President of the United States to be a national holiday. The following national holidays are observed and for the purpose of this contract is defined as "Legal Federal, official holidays" as follows:

Recognized Holidays:

New Year's Day	January 1
Martin Luther King Jr.'s Birthday	Third Monday in January
President's Day	Third Monday in February
Memorial Day	Last Monday in May
Juneteeth Day	June 19
Independence Day	July 4
Labor Day	First Monday in September
Columbus Day	Second Monday in October
Veteran's Day	November 11
Thanksgiving Day	Fourth Thursday in November
Christmas Day	December 25

8. SITE INVESTIGATION AND CONDITIONS AFFECTING THE WORK:

8.1 The Contractor acknowledges that it has taken steps reasonably necessary to ascertain the nature and location of the work, and that it has investigated and satisfied itself as to the general and local conditions which can affect the work or its cost, including but not limited to (1) conditions bearing upon transportation, disposal, handling, and storage of materials; (2) the availability of labor, water, electric power, and roads; (3) uncertainties of weather, or similar physical conditions at the site; (4) the conformation and condition of the ground; and (5) the character of equipment and facilities needed preliminary to and during work performance. The Contractor also acknowledges that it has satisfied itself as to the character, quality, and quantity of materials or obstacles to be encountered insofar as this information is reasonably ascertainable from an inspection of the site, as well as from any documents made a part of this contract. Any failure of the Contractor to take the actions described and acknowledged in this paragraph will not relieve the Contractor from responsibility for estimating properly the difficulty and cost of successfully performing the work, or for proceeding to successfully perform the work without additional expense to the Government.

8.2 The Government assumes no responsibility for any conclusions or interpretations made by the Contractor based on the information made available by the Government. Nor does the Government assume responsibility for any understanding reached or representation made concerning conditions which can affect the work by any of its officers or agents before the execution of this contract, unless that understanding or representation is expressly stated in this contract.

9. QUALITY CONTROL PROGRAM:

The Contractor shall coordinate, report, and ensure the timely completion of the work specified in this PWS. This encompasses the planning, coordination, technical direction, and surveillance of all activities necessary to execute all work. The contractor shall submit their Quality Control plan in hardcopy in hard three ring binders with cover page, table of contents and tabulated with dividers and digitally in PDF within ten (10) days of contract award date. The COR will review the document and note any needed clarifications and return to the Contractor for revisions, if necessary. A VA approved QAQC Plan shall be in place within thirty (30) days of the contract start date.

9.1 The contractor shall provide the overall management effort required to integrate technical and programmatic functions.

9.2 The contractor shall ensure the technical excellence, cost effectiveness, and timeliness of all required work deliverable products.

9.3 The contractor shall develop and maintain an effective quality control program to ensure service is performed in accordance with this PWS. The contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The contractor's quality control program is the means by which he/she assures that his/her work complies with the requirements of the contract. The overall goal of the program should be to identify and correct any problems that may exist before they are identified by or reported to the COR. The Government has the right to review and ask for corrections, additional items, and updates during the contract period.

9.4 The Contractors QAQC Plan shall include the following at a minimum:

9.4.1 A comprehensive list of all devices and associated equipment required to be maintained and/or inspected as part of this service contract in accordance with the NFPA codes list in paragraph 2.1 above. This list shall be reviewed with VA and discrepancies addressed prior to contract award.

9.4.2 An inspection plan and schedule covering all services required by this contract. The inspection plan must specify the areas to be inspected on either a scheduled or unscheduled basis and how often inspections will be accomplished and documented. The name and title of the individual(s) who will perform the inspections shall be noted.

9.4.3 On site records of all inspections conducted by the Contractor noting necessary corrective action(s) taken. The Government reserves the right to request copies of any inspection.

9.4.4 The methods for identifying and/or preventing deficiencies in the quality of service performed before the level of performance become unacceptable.

9.4.5 Organizational structure and functions noting intermediate supervisory responsibilities and overall management responsibilities for ensuring total contract performance.

9.4.6 The Contractor shall provide as part of the QAQC Plan and maintain records identifying the required certifications (per NFPA requirements) and ongoing training of each employee and/or laboratory testing agencies performing services under this contract. The Contractor shall make any updates to certifications or records for individuals and/or laboratory testing agencies available for review by the VA.

10. QUALITY ASSURANCE SURVELLANCE PLAN:

The government shall evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan and PWS. This plan is primarily focused on what the Government must do to ensure that the contractor has performed in accordance with the performance standards. Failure to correct any adverse findings or failure to deliver all services described in this contract may result in non-

acceptance of the services by the Government. Failure to meet the standards of this performance work statement may result in a deduction of price equal to the value of the unperformed or poorly performed services. Failure to provide services in accordance with this contract could also result in termination of the contract for cause and/or adversely impact the Contractor's ability to be selected for future contracts as documented. Government verification inspections of services shall not constitute acceptance nor replace the contractor inspection or in any way relieve the contractor of any responsibility to take all actions necessary to assure highest quality of service rendered. The Quality Assurance Surveillance Plan (QASP) is included in **Attachment 3.**

11. CONTRACTING OFFICER REPRESENTATIVE:

11.1 The Contracting Officer Representative (COR) will be appointed by the Contracting Officer who will provide technical guidance and clarifications to the Contractor. It shall be noted that interpretation of contractual terms and/or financial matters is the responsibility of the Contracting Officer.

11.2 The COR will monitor the Contractors' performance to assure that services are provided, and the standards of performance are met in accordance with this Performance Work Statement and the QAQC Plan. In accordance with FAR 52.212-4 (a) "Inspection/Acceptance" the Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of non-conforming supplies or re-work of non-conforming services at no additional cost to the Government.

12. STANDARD OF CONDUCT: Contractor, subcontractors, and contractor's personnel must adhere to the contract and shall conduct themselves according to VA conduct standards.

12 Neglect of Duties. Contractor, subcontractors, and personnel neglect of duties shall not be condoned. This shall include but not limited to sleeping on duty, unreasonable delay or failures to carry out assigned tasks, conducting personal affairs during duty hours, and refusing to render assistance or cooperate in upholding the integrity of the work site security. This can result in the termination of the contract or removal of the employee(s), which will be the decision the VA. The CO shall inform the contractor in writing of actions.

13 Disorderly Conduct. The use of abusive or offensive language, quarreling, intimidation by words, actions, or fighting shall not be condoned. Also included is participation in disruptive activates which interfere with normal and efficient government operations. This can result in the termination of the contract or removal of the employee(s), which will be the decision the VA. The CO shall inform the contractor in writing of actions.

14 Driving. Contractor and Contractor's employees shall obey all speed limits and traffic signs. Disobeying traffic regulation could result in court citations, which include monetary fines. Continued violations could result in being restricted from driving on VA facilities.

15 Parking. Contractor vehicles will be parked only in lots or areas designated by the COR, if available. The Government will not be liable for any lost, stolen, or damaged vehicles or items. Contractor shall obey all distances from critical areas which are deemed by the VA or code. Continued violations could result in being restricted from driving on VA facilities.

16 Cellular Phone/Radio Use: Cellular phones and two-way radios are not to be used in emergency rooms, surgical and recovery suites, and within six feet of any medical equipment.

17 Smoking. Smoking is prohibited on VA property. Smoking on VA property could result in citations, which include monetary fines. Continued violations could result in removal from VA facilities.

18 Intoxicants. The Contractor shall not allow any employee to possess, sell, consume, or be under the influence of intoxicants, drugs, or substances that produce similar effects. The use of illegal drugs is prohibited on Federal property. Violators will be prosecuted.

19 Posted Signs: The Contractor shall comply will all posted signs on VA property.

20 Criminal Actions. Contractor, subcontractor, or contractor's employees may be sanctioned for criminal actions, but not limited to the following:

20.1 Falsification or unlawful concealment, removal, mutilation, or destruction of any official documents or records or concealment of material facts by willful omission from official documents or records.

20.2 Unauthorized use of Government property, theft, vandalism, or immoral conduct.

20.3 Unethical or improper use of official authority or credentials.

20.4 Removal of Personnel. The Government reserves the right to direct the Contractor to remove any employee from the work site for failure to comply with the standards of conduct or for safety/security violations.

13. SECURITY:

13.1 Security Badge: Contractor and contractor's employees shall obtain a flash badge / temporary badge from dispatch, VA police on arrival to any campus. The VA Issued Security badge shall be worn on the upper torso and be visible at all times.

13.2 Contractor's Badge: Contractor, Subcontractors, employees, and representatives shall have a company badge visible at all times. Contractor's badge shall be visible at all times.

13.3 Physical Security: The contractor shall be responsible for safeguarding their equipment while on government property government. Additionally, the contractor shall be responsible for any government equipment, information and property provided for contractor use. Contractor will NOT be provided with a staging area for storage of tools, equipment, material, supplies, and other items. The Government will not be responsible for damage or loss of contractor's property. Contractor is responsible for safeguarding its property.

13.4 OI&T Security: Office of Information and Technology (OI&T) certification and accreditation requirements do not apply for this service contract and therefore a Security Accreditation Package is not required. At no time will the vendor be in contact or have access to VA sensitive information, OI&T systems, or the VA OI&T network.

14. SAFETY

14.1 In performance of this contract, the Contractor shall take such safety precautions as the Contractor Officer or his/her designee may determine to be reasonably necessary to protect both the lives and health of the occupants of the

building and property. The Contractor Officer or his/her designee will notify the Contractor of any non-compliance. The Contractor shall, after receipt of such notice, immediately correct the condition to which attention has been directed.

14.2 The Contractor shall provide all necessary Personal Protective Equipment (PPE) and attire to personnel and require employees to use it during the performance of their duties as necessary. Employees shall be trained on the use and proper maintenance of PPE. The contractor shall conform to all regulations, federal and local OSHA standards.

14.3 Contractor shall comply with the Federal and State OSHA Blood Borne Pathogens Standard(s) and Airborne Infection Precautions. The Contractor shall ensure:

14.3.1 Methods are in place by which all employees are educated as to the risks associated with Blood Borne Pathogens and Infectious Airborne Diseases in Health Care facilities

14.3.2 Have policies and procedures in place which reduce the risk of employee exposure to Blood Borne Pathogens and Infectious Airborne Diseases

14.3.3 Have mechanisms for employee counseling and treatment following exposure to blood borne pathogens and Infectious Airborne Diseases.

14.3.4 Provide employees with appropriate personal protective equipment (PPE) and/or clothing such as gloves, caps, gowns, masks, and protective eyewear throughout the performance of this contract.

14.4 Uniforms. The contractor shall require all his employees, including supervisor, to wear distinctive uniform clothing for ready identification. The uniform shall have the Contractor's name, easily identifiable.

14.5 Supervision. The contractor shall arrange for satisfactory supervision of the contract work. The Contractor or his designee shall be available at all times, when the contract work is in progress, to receive notices, reports or requires from the Contracting Officer or his representative.

15. INVOICING: Contractor shall invoice in monthly increments or as established by the Contracting Officer in arears for work performed. Invoices will not be paid until all required deliverables have been received during the billing period. Invoices shall be submitted to the COR for review and approval prior to submission to Tungsten.

15.1 All invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

15.2 VA's Electronic Invoice Presentment and Payment System- The FSC uses a third-party contractor, Tungsten, to transition vendors from paper to electronic invoice submissions. Please go to this website: http://www.tungsten-network.com/US/en/veterans-affairs/ to begin submitting electronic invoices, free of charge.

15.3 More information on the VA Financial Services Center is available at http://www.fsc.va.gov/einvoice.asp.

15.4 Vendor e-Invoice Set-Up Information:

15.5 Please contact Tungsten at the phone number or email address listed below to begin submitting your electronic invoices to the VA Financial Services Center for payment processing, free of charge. If you have questions about the e- invoicing program or Tungsten, please contact the FSC at the phone number or email address listed below:

15.5.1 Tungsten e-Invoice Setup Information: 1-877-489-6135

15.5.2 Tungsten e-Invoice email: VA.Registration@Tungsten-Network.com

15.5.3 FSC e-Invoice Contact Information: 1-877-353-9791

15.5.4 FSC e-invoice email: vafsccshd@va.gov

13. ATTACHMENTS:

13.1 Attachment 1: List of Items needing testing

13.2 Attachment 2: Specific tasks and services required for this contract

13.3 Attachment 3: Quality Assurance Surveillance Plan (QASP)

References

a. NFPA 70, National Electrical Code, Latest Edition.

b. NFPA 70B, Recommended Practice for Electrical Equipment Maintenance, LatestEdition.

c. NFPA 70E, Standard for Electrical Safety in the Workplace, Latest Edition.

d. NFPA 99, Health Care Facilities Code, Latest Edition.

e. NFPA 101, Life Safety Code, Latest Edition.

f. NFPA 110, Standard for Emergency and Standby Power Systems, Latest Edition

g. The Joint Commission Accreditation Manual for Hospitals, Latest Edition.

h. OSHA - Occupational Safety and Health Requirements Part 1910 Subpart J - The controlof hazardous energy (lockout/tagout) (1910.147).

i. OSHA - Occupational Safety and Health Requirements Part 1910 Subpart S - Electrical(1910.301 - 1910.399).

j. OSHA - Safety and Health Regulations for Construction Part 1926 Subpart K - Electrical(1926.400 - 1926.449).

k. Statement of Work : Maintenance and Testing of the Electrical Power DistributionSystem. Contracting Tools on the CEOSH Website at:

http://vaww.ceosh.med.va.gov/01HE/Pages/ST_electrical_distribution.shtml#Contracting.

NOTE: *This is an internal web site and is not available to the public.*

l. CEOSH. The General Safety Guidebook, Latest Edition at: http://vaww.ceosh.med.va.gov/01HP/pages/guidebooks.shtml . *NOTE: This is an internal Web-site and is not available to the public.*

m. Institute of Electrical and Electronics Engineers (IEEE) Std 1584-2002, Guide forPerforming Arc-Flash Hazard Calculations.

SECTION C - CONTRACT CLAUSES

C.1 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025) (DEVIATION)

(a) *Definitions*. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) *Disputes*. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) *Invoice.* The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) *Patent indemnity.* The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment—*

(1) *Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the

Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by FAR part 33 if—

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title.* Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty.* The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability.* Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services.

(2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) Other contract clauses incorporated in the solicitation or contract;

(4) Addenda to this solicitation or contract,

(5) Solicitation provisions incorporated in the solicitation.

(6) Other paragraphs of this clause.

(7) Other documents, exhibits, and attachments; and

(8) The specification.

(s) *Unauthorized obligations*.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an “I agree” click box or other comparable mechanism (e.g., “click-wrap” or “browse-wrap” agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) *Comptroller General examination of record*. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor’s directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period

required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) *Incorporation by reference*. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of Clause)

ADDENDUM to FAR 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Clauses that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following clauses are incorporated into 52.212-4 as an addendum to this contract:

C.2 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within The specified rates under this clause will be those rates in effect under the contract at the time the option is exercised.

(End of Clause)

C.3 52.222-42 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5332.

This Statement is for Information Only:

It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
Electrician	WG-10 Step 01
Electrical Inspector	WG-10 Step 01

(End of Clause)

C.4 52.222-90 ADDRESSING DEI DISCRIMINATION BY FEDERAL CONTRACTORS (DEVIATION APR 2026)

(a)*Definitions*. As used in this clause—

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (*e.g.*, vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

(1) The Contractor will not engage in any racially discriminatory DEI activities;

(2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;

(3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;

(4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and

(5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.

(6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of Clause)

C.5 52.223-23 SUSTAINABLE PRODUCTS (NOV 2025) (DEVIATION)

(a) Definitions. As used in this clause—

Sustainable products means—

(1) A product that contains recovered material designated by the EPA under the Comprehensive Procurement Guidelines (42 U.S.C. 6962) (40 CFR part 247) (*https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products*).

(2) An energy-efficient product or low standby power device (42 U.S.C. 8259b) (10 CFR part 436, subpart C) (https://www.energy.gov/femp/search-energy-efficient-products, https://www.energystar.gov/products?s=mega, and https://www.energy.gov/femp/low-standby-power-product-list).

(3) A biobased product that meets the content requirements of the USDA under the BioPreferred® program (7 U.S.C. 8102) (7 CFR Part 4270) (https://www.biopreferred.gov/)

(4) A substance identified in the EPA's Significant New Alternatives Policy (SNAP) program as a safe alternative to an ozone-depleting substance (42 U.S.C. 7671l) (40 CFR part 82, subpart G) (https://www.epa.gov/snap/unacceptable-and-acceptable-substitutes-tables).

(b) Requirements. The Government has identified in the statement of work or elsewhere in the contract the sustainable products that are required during the performance of this contract. The Contractor shall ensure that it provides sustainable products as required by this contract, when the products are—

(1) Delivered to the Government;

(2)Furnished for use by the Government;

(3) Incorporated into the construction of a public building or public work; or

(c) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract.

(End of Clause)

C.6 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025) (DEVIATION)

(a) *Definitions*. As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at *https://www.sam.gov* (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangement means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

(1) Kaspersky Lab;

(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., “Kaspersky”;

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or

(4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required

for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract*. Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures*. The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers*. The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the

contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract*.

(1) *Certain telecommunications and video surveillance equipment, systems, or services*.

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions*.

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at *https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists*.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at *https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information*.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at *https://www.trade.gov/consolidated-screening-list*, which

consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition*. The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions*.

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over $15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders*.

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at *https://www.sam.gov* to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f)*Reasonable inquiry*. The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services*. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report*.

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at *https://dibnet.dod.mil*.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report*.

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity’s possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

(i) Contract number and order number, if applicable;

(ii) Name of the covered article or source subject to a FASCSA order;

(iii) The specific FASCSA order the product or service does not comply with;

(iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of Provision)

C.7 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any VAAR (48 CFR Chapter FEDERAL ACQUISITION REGULATION (48 CFR Chapter 1)) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

852.232-73 Limitation of Government's Obligation.

LIMITATION OF GOVERNMENT'S OBLIGATION (OCT 2026)(DEVIATION)

- (a) Operative status. This clause is incorporated into this contract as a standard term. It is not operative and has no legal effect unless and until the Department of Veterans Affairs is operating under a continuing resolution (CR). Upon enactment of a CR applicable to VA appropriations, this clause becomes operative by its own terms without further contract modification. Upon enactment of regular appropriations applicable to this contract, this clause returns to dormancy. If a subsequent CR is enacted, this clause reactivates automatically on the same terms.

- (b) Funded amount under a CR. When this clause is operative, the Government's obligation under the contract is limited to the CR ceiling. The contracting officer must allot funds to the contract by modification. Funds allotted to the contract by modification are available for payment and obligated as of the effective date of the modification. The Government may allot additional funds by modification as they become available.

- (c) Contractor performance limit. For the work funded under paragraph (b) of this clause, the Contractor agrees to perform up to the point at which the total amount payable by the Government, including any invoice payments to which the Contractor is entitled and reimbursement of authorized termination costs in the event of termination of the work funded under this clause for the Government's convenience, does not exceed the total amount currently obligated under the contract. The Contractor is not authorized to continue that work beyond that point. The Government will not be obligated in any event to reimburse the Contractor in excess of the amount allotted to this contract, regardless of anything to the contrary in any other clause, including but not limited to the clause entitled "Termination for Convenience of the Government" or the termination for convenience provision of the clause at 52.212-4, Contract Terms and Conditions, Commercial Products and Commercial Services.

- (d) Government right to allot additional funds. The Government may at any time prior to termination allot additional funds for performance under this contract.
- (e) Termination rights preserved. The termination provisions of this clause do not limit the rights of the Government under any clause entitled “Default” or “Termination for Cause.” The provisions of this clause are limited to the work and allotment of funds under paragraph (b) of this clause. When this contract is fully funded under regular appropriations, this clause returns to dormancy as provided in paragraph (a).
- (f) Termination for convenience rights preserved. Nothing in this clause affects the right of the Government to terminate this contract pursuant to the termination for convenience terms set forth in this contract.
- (g) voluntary services. Nothing in this clause must be construed as authorization for the acceptance of voluntary services whose acceptance is otherwise prohibited under 31 U.S.C. 1342.
- (h) Schedule for additional funds. The parties contemplate that the Government will allot funds to this contract from time to time as the need arises and as funds become available under a CR. There is no fixed schedule for providing additional funds.

(End of clause)

C.8 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52
https://department.va.gov/acquisition-and-logistics/vaar-rfo-deviations-2/

(End of Clause)

FAR Number	Title	Date
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT ALTERNATE I (NOV 2021)	JUN 2020
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS	NOV 2023
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN 2017
52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	JAN 2011
52.204-13	SYSTEM FOR AWARD MANAGEMENT—MAINTENANCE (DEVIATION)	NOV 2025
52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (DEVIATION)	NOV 2025

52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS (DEVIATION)	NOV 2025
52.219-6	NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE (DEVIATION)	NOV 2025
52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (DEVIATION)	NOV 2025
52.219-14	LIMITATIONS ON SUBCONTRACTING (DEVIATION)	NOV 2025
52.219-28	POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (DEVIATION)	NOV 2025
52.222-3	CONVICT LABOR (DEVIATION)	NOV 2025
52.222-35	EQUAL OPPORTUNITY FOR VETERANS (DEVIATION)	NOV 2025
52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (DEVIATION)	NOV 2025
52.222-37	EMPLOYMENT REPORTS ON VETERANS (DEVIATION)	NOV 2025
52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEVIATION)	NOV 2025
52.222-41	SERVICE CONTRACT LABOR STANDARDS (DEVIATION)	NOV 2025
52.222-44	FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT LABOR STANDARDS—PRICE ADJUSTMENT (DEVIATION)	NOV 2025
52.222-50	COMBATING TRAFFICKING IN PERSONS (DEVIATION)	NOV 2025
52.222-54	EMPLOYMENT ELIGIBILITY VERIFICATION (DEVIATION)	NOV 2025
52.222-55	MINIMUM WAGES FOR CONTRACTOR WORKERS UNDER EXECUTIVE ORDER 14026 (DEVIATION)	NOV 2025
52.222-62	PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706 (DEVIATION)	NOV 2025
52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING	MAY 2024
52.228-5	INSURANCE—WORK ON A GOVERNMENT INSTALLATION	JAN 1997
52.229-3	FEDERAL, STATE, AND LOCAL TAXES (DEVIATION)	SEP 2025
52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER—SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	MAR 2023
52.233-3	PROTEST AFTER AWARD (DEVIATION)	NOV 2025
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (DEVIATION)	NOV 2025
852.201-70	CONTRACTING OFFICER'S REPRESENTATIVE	DEC 2022
852.203-70	COMMERCIAL ADVERTISING	MAY 2018
852.215-71	EVALUATION FACTOR COMMITMENTS	OCT 2019
852.232-72	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS	NOV 2018
852.242-71	ADMINISTRATIVE CONTRACTING OFFICER	OCT 2020

(End of Addendum to 52.212-4)

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

See attached document: Attachment 1 - Electrical Equipment Inventory.

See attached document: Attachment 2 - Specific Tasks.

See attached document: Attachment 3 - QASP.

See attached document: Attachment 4 - Fresno One-line Diagrams PDF-Glen.

See attached document: Attachment 5 - VA Fresno Completed Final Report.

See attached document: Wage Determination 2015-5609 Rev 31 dated 08-22-2026.

SECTION E - SOLICITATION PROVISIONS

E.1 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025) (DEVIATION)

(a) *Submission of offers*. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—

(1) The solicitation number;

(2) The name, address, telephone number of the Offeror;

(3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;

(4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;

(5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and

(6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) *Period for acceptance of offers*. The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) *Late submissions, modifications, revisions, and withdrawals of offers*.

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) *Debriefings*. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of Provision)

ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL ITEMS

SUBMISSION INSTRUCTIONS

(a) General Instructions

(1) The Government intends to establish a contract without exchanges with contractors. Consequently, Contractors are highly encouraged to offer their best technical and pricing quotes in their initial submissions. However, the Government reserves the right to discuss submissions with any or all contractors submitting a technical and price quote, if it is determined advantageous to the Government to do so. This statement is not to be construed to mean that the Government is obligated to conduct exchanges. A Contractor may be eliminated from consideration for award without further exchanges if its technical and/or pricing information is not among those Contractors considered most advantageous to the Government.

(2) Electronic Submissions: Contractors shall email their quote to Jill Williams at jill.williams@va.gov. Include the solicitation number in the Subject line. Any attachments must be readable using Microsoft Office or Adobe PDF.

(3) Follow the quote preparation instructions as given in the solicitation and prepare your response and supporting documents. Contractors must be registered in the System for Award Management (SAM) and have a SAM Unique Entity ID (UEI) number.

(4) The quote must be prepared in two (2) pdf documents with clearly marked sections. Technical Capability and Past Performance shall be submitted as one pdf document. Price shall be submitted as a separate pdf document. There shall be no reference to price in the Technical Capability / Past Performance document.

(5) The technical approach must clearly identify each element of the technical capability listed in provision 52.212-2. There are factor and sub-factors listed and the vendors must indicate in the technical approach document which factor/sub-factors they are addressing so that the Government can clearly identify which factor the information is addressing. This is not intended to be an overly burdensome task and can be accomplished by a simple heading indicating which element is being addressed followed by the supporting information. The Government will not sift through several pages of a technical approach document trying to determine which element is being addressed.

(b) Quote Package Contents

(1) Standard Form (SF) 1449 shall be submitted fully complete. The contractor shall acknowledge all amendments to the solicitation that may be issued.

(2) Acknowledgment of Quote Amendments (if applicable)

(3) Quotes should include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Quotes that fail to furnish required representations, or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

(4) The quote must include a statement or certification indicating the vendor has adequate financial resources to perform the contract, or the ability to obtain them.

If all quote components are NOT received, it may result in rejection or elimination of your quote, and it will not be considered for award. We will be focused on the content of the quote and whether it addressed all the evaluation factors and subfactors. Price Lists located

in Section B shall be submitted fully complete and error free. It shall contain prices for the established Contract Line-Item Numbers (CLINs) set forth in that section to include prices for the Period of Performance.

The quote package should address all following for comparative evaluation of the solicitation evaluation factors:

(1) Technical Approach
   a. A technical narrative shall be provided that describes a clear and concise plan to meet all requirements listed in the Performance Work Statement including compliance with Directive 1028 paragraph 8.j (6) dated February 24, 2021.
   b. Contractors shall provide copies of technical training (outlined in the OSHA Standard 29 Code of Federal Regulations (CFR) 1910 Subpart S – Electrical, and the NFPA 70E – Standard for Electrical Safety in the Workplace) and a demonstrable track record of working experience in maintenance, inspection, and testing of Electrical Power Distribution Systems and related components in healthcare, industrial, educational, and commercial facilities for a minimum of five (5) continuous years.
   c. Applicable licenses and/or certifications of proposed technicians must be submitted with the quote. Contractors shall be certified by the Inter-National Electrical Testing Association (NETA) or equivalent certifying organization as Certified Technicians.

(2) Past Performance
   a. Past Performance will be located in the vendor's quote under the designated section.
   b. At a minimum, past performance information shall include: Contract PIID, performance dates, total dollar amount, a brief description of the services performed, and point of contact.

(3) Price
   a. The price schedule located in Section B of the solicitation shall be completed in its entirety. Failure to utilize the provided price schedule will result in elimination.
   b. Price shall be submitted as a separate pdf document. There shall be no reference to total price in the Technical Capability / Past Performance document.
   c. The rate/price for Repair work shall include labor only for normal business hours **and** non-business hours, holidays and weekends. The total estimated hours needed for this requirement is 500 hours.

E.2 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025) (DEVIATION)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to

the Government, price and other factors considered. The following factors will be used to evaluate offers:

Technical Capability

Past Performance

Price

(b) *Options (if applicable).* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

ADDENDUM to FAR 52.212-2 EVALUATION—COMMERCIAL ITEMS (OCT 2014)(DEVIATION OCT 2025)

The following provisions are incorporated into 52.212-2 as an addendum to this solicitation.

(a) Basis for Award. The Government will determine the awardee for this solicitation as the vendor whose quotation will be most advantageous to the Government, price and other factors considered.

(b) The following factors shall be used to evaluate quotations:

(1) Technical Approach

(2) Past Performance

(3) Price

(c) Evaluation Approach. The Government will evaluate quotations using the comparative evaluation process, quotes will be compared to one another to determine which provides the best benefit to the Government. The Government reserves the right to consider a quote other than the lowest price that provides additional benefit(s). Quotes may exceed minimum requirements of the solicitation. The Government reserves the right to select a quote that provides benefit to the Government that exceeds the minimum requirements of the solicitation but is not required to do so. Each response must at least meet the minimum requirements of the solicitation. Rankings are not utilized for this requirement.

The evaluation will consider the following:

1. **Factor 1 - Technical Capability**

   The Government will evaluate Technical Capability to determine the offerors ability to meet all requirement objectives in the Performance Work Statement.

   Subfactor 1 – Technical Approach and Compliance: The government will evaluate the extent to which the technical narrative presents a clear, concise, and feasible approach for meeting all Performance Work Statement requirements, including compliance with Directive 1028, paragraph 8.j(6), dated February 24, 2021.

   Subfactor 2 – Technical Qualifications and Relevant Experience: The government will evaluate the adequacy of the contractor's documented technical training in accordance with OSHA 29 CFR 1910, Subpart S, and NFPA 70E, together with its demonstrated record of at least five continuous years of experience maintaining, inspecting, and testing electrical power distribution systems and related components in healthcare, industrial, educational, and commercial facilities.

   Subfactor 3 – Technician Licenses and Certifications: The government will evaluate whether the quotation includes current, applicable licenses and certifications for all proposed technicians and demonstrates that the technicians are certified by the Inter-National Electrical Testing Association (NETA), or by an equivalent recognized certifying organization, as Certified Technicians.

2. **Factor 2 – Past Performance**

   Past performance is a measure of the degree to which a contractor satisfied its customers in the past and complied with Federal, State, and local laws and regulations. The Government will evaluate Past Performance to determine the quality of services previously provided, including aspects of cost, schedule and performance, such as quality of product or service, timeliness of performance or adherence to delivery schedules, and effectiveness in program management. The Government reserves the right to evaluate any other information available to the Government through the information within the quote or other available resources. The Government will consider the level of risk associated with the contractor's past performance. A contractor without a record of relevant past performance or for whom information on past performance is not available; the contractor may not be evaluated favorably or unfavorably on past performance.

   Past performance will be reviewed to determine if the previous work was recent (within the past 5 years) and relevant (similar size and type of work). Past performance information will also be reviewed to determine the overall trend in the ratings of quality for previous contracts. The offerors' quote will be evaluated to determine the extent to which their performance demonstrates the likelihood of successful performance in providing requirements similar in size, scope, and complexity to this solicitation. Provide

at least two (2) and not more than four (4) most recent and relevant past performance examples.

3. **Factor 3 – Price**

The Government will evaluate prices, fees, and net discounted rates provided in Section B – Price and Delivery Schedule.

Options. The Government will evaluate prices, fees, and net discounted rates for rates applied to FAR clause 52.217-8 Option to Extend Services. As stated in the clause, if exercised, the continued performance of any services must be within the limits and at the rates specified in the contract, with the total extension of performance not to exceed 6 months; the evaluation of all rates within specified optional period thereby constitutes the evaluation of rates for this extension of services option.

Evaluation of options shall not obligate the Government to exercise the option(s).

(End of Addendum to 52.212-2)

E.3 52.216-1 TYPE OF CONTRACT (NOV 2025) (DEVIATION)

The Government contemplates award of a Firm-Fixed-Price contract resulting from this solicitation.

(End of Provision)

E.4 52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (NOV 2025) (DEVIATION)

(a) *Definitions*. As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) (13 CFR 126.103).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is 541350.

(2) The small business size standard is $11.5 Million.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations*.

(1) The offeror represents as part of its offer that—

(i) It [ ] is, [ ] is not a small business concern; or

(ii) It [ ] is, [ ] is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture*: _____.]

(2) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it [ ] is, [ ] is not, a women-owned small disadvantaged business concern.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program*. The offeror represents as part of its offer that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture*. The offeror represents as part of its offer that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

(5) *SDVOSB joint venture eligible under the SDVOSB Program.* [*Complete only if the offeror is certified as a SDVOSB concern.*] The offeror represents as part of its offer that it [ ] is, [ ] is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

(6) *HUBZone joint venture eligible under the HUBZone Program. [Complete only if the offeror is a HUBZone small business concern.*] The offeror represents, as part of its offer, that it [ ] is, [ ] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) *Notice*.

Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be—

(1) Punished by imposition of fine, imprisonment, or both;

(2) Subject to administrative remedies, including suspension and debarment; and

(3) Ineligible for participation in programs conducted under the authority of the Act.

(End of Provision)

E.5 52.233-2 SERVICE OF PROTEST (SEP 2006)

Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Jill Williams at jill.williams@va.gov

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

E.6 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations

that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures*.

(1) *Covered telecommunications and video surveillance*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at *https://www.sam.gov* for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders*.

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations*. By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror's possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation*. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit.

(e) *Sudan certification*. By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications*.

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds $15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et

seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at *https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx*)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at *CISADA106@state.gov*.

(g) *Disclosure*.

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at *https://dibnet.dod.mil*.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures*. The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of Provision)

E.7 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the date of the provision.

(b) The use in this solicitation of any VAAR Acquisition Regulation (48 CFR Chapter FEDERAL ACQUISITION REGULATION (48 CFR Chapter 1)) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the name of the regulation.

(End of Provision)

E.8 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52
https://department.va.gov/acquisition-and-logistics/vaar-rfo-deviations-2/

(End of Provision)

FAR Number	Title	Date
52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP 2024
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS—REPRESENTATION	JAN 2017
52.204-7	SYSTEM FOR AWARD MANAGEMENT—REGISTRATION (DEVIATION)	NOV 2025
852.233-70	PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION	OCT 2018
852.239-75	INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY NOTICE	FEB 2023